

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551-3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you.*** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.***
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQk9kOWckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

EDDIE SWAIN,

Respondent

) Case Number: FCS-23-356312

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, AND RECONSIDERATION OF DENIAL OF
DVRO CCP 1008

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Respondent Eddie A. Swain (Father) and Other Parent Amy K. Adams (Mother).
The minor child subject to this proceeding is Iam King Swain (DOB: 06/30/21).
- 2) On December 15, 2026, the Court consolidated case numbers FDV-28-818716 and FDV-25-818532 into case number FCS-23-356312 (lead case).
- 3) On December 19, 2025, Father filed a Request for Order seeking modification of custody and reconsideration of the court's denial of his request for Domestic Violence Restraining Order (DVRO), under California Code of Civil Procedure section 1008. The Court notes the parties came before this Court on competing (i.e., mutual) restraining orders on November 6, 2025 and December 8, 2025. On December 12, 2025, the Court denied both competing requests for DVROs. However, the Court granted Father's request for joint legal and joint physical custody and gave Father parenting time on the 1st, 3rd and 5th weekends of each month from Friday at 5:00 p.m. – Monday morning drop-off at school.

1 **B. Findings and Order**

- 2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child(ren) is the United States.
- 6 2) Father's request for reconsideration of the Court's denial of his request for DVRO pursuant to
7 California Code of Civil Procedure section 1008 is DENIED. The Court finds Father has not
8 provided this Court with any new or different facts, circumstances, or law that were not available
9 to him at the time of the hearing. The Court considered the totality of the circumstances, and the
10 Court did not find a sufficient basis to grant Father's request for a DVRO.
- 11 3) The Court further finds that there is no basis upon which to modify the existing child custody and
12 visitation orders. Father's request for modification of custody is therefore DENIED.
- 13 4) All prior orders, not in conflict with the orders made herein, shall remain in full force and effect.
- 14 5) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FELICIA C. LESTER,

Petitioner

VS.

ILLIA SHUVALOV,

Respondent

) Case Number: FPT-26-378826

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), RELINQUISH
CHILDREN'S PASSPORT, VACATE RESIDENCE (SEE #7)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Felicia C. Lester (Mother) and Respondent Ilia Shuvalov (Father). They share two minor children: Kira Doris Shuvalov (DOB: 08/10/17) and Rafael Eduard Shuvalov (DOB: 11/30/19).
- 2) On January 15, 2026, Mother filed a Request for Order seeking initial orders for child custody and visitation. Mother also requested orders related to the children's passports and an order to vacate the residence.
- 3) On February 10, 2026, Father filed a Responsive Declaration wherein he asks the Court to deny part of the relief requested by Mother.
- 4) On March 2, 2026, the parties appeared at readiness hearing and the Court referred the parties to Family Court Services (FCS) Mediation on March 25, 2026 and set a return hearing for April 28, 2026.

1 5) On March 25, 2026, the parties attended FCS Mediation and were able to reach an agreement.
2 The Child Custody Visitation Stipulation and Order was filed on April 1, 2026. The parties
3 reached agreement on all issues presently before the Court, except for Petitioner's request that
4 Respondent vacate the property located at 1210 Dolores, Unit 2, San Francisco, CA 94110.

5 **B. Findings and Order**

- 6 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
7 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
8 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
9 child is the United States.
- 10 2) The Court's power to grant a non-married cohabitant's request for exclusive use and possession
11 of a residence is limited to those situations involving domestic violence. No such allegations
12 have been made by Mother against Father. Accordingly, Mother's request is DENIED.
- 13 3) As to Mother custody and visitation requests, the Court confirms the Stipulation and Order filed
14 April 1, 2026.
- 15 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID SIU-KUNG MA,

Petitioner

VS.

JENNIFER RAMIREZ,

Respondent

) Case Number: FMS-25-387578

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
SPOUSAL OR PARTNER SUPPORT, AND SANCTIONS UNDER FAMILY CODE SECTION 271;
REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
SPOUSAL OR PARTNER SUPPORT, AND SANCTIONS UNDER FAMILY CODE SECTION 271

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner David Siu-Kung Ma (Father) and Respondent Jennifer Ramirez (Mother). They share two minor children: Kira Doris Shuvalov (DOB: 08/10/17) and Rafael Eduard Shuvalov (DOB: 11/30/19).
- 2) On January 7, 2026, Father filed a Request for Order seeking:
 - a. An increase in parenting time to Wednesday at 6:00 p.m. – Sunday at 8:00 a.m. for Father and Sunday at 8:00 a.m. – Wednesday at 6:00 p.m. for Mother.
 - b. Modification of guideline support.
 - c. The parties to alternate claiming the children as dependents on a year-to-year basis.
 - d. Communication between the parties to be respectful and limited to child related issues only.

- e. Proof of actual payment of childcare costs to family members.
 - f. Travel orders.
 - g. Sanctions under Family Code section 271.
- 3) On January 28, 2026, Mother filed a Responsive Declaration wherein she asks the Court to deny any and all relief requested by Father, asserting that Father has not met his burden to show a change of circumstance.
 - 4) On January 30, 2026, Father filed a Reply Declaration, which has been read and considered by the Court.
 - 5) On April 15, 2026, Mother filed Respondent's Supplemental Declaration Regarding Custody and Visitation, which has been read and considered by the Court.
 - 6) On April 16, 2026, Father filed Petitioner's Supplemental Declaration, which has been read and considered by the Court.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) The Court finds good cause to rule on Father's Request for Order filed January 7, 2026 as follows:
 - a. An increase in parenting time to Wednesday at 6:00 p.m. – Sunday at 8:00 a.m. for Father and Sunday at 8:00 a.m. – Wednesday at 6:00 p.m. for Mother is DENIED. The parenting plan in place shall be followed for a period of six months before this Court will consider any additional increase.
 - b. Modification of guideline support is DENIED. There is no change of circumstance to warrant this request.
 - c. The parties to alternate claiming the children as dependents on a year-to-year basis is DENIED. Mother has a higher timeshare than Father therefore she is entitled to claim the child each year.

- 1 d. Communication between the parties shall be respectful and limited to child related issues
2 only. Both parents shall communicate in a respectful manner and should limit their
3 communications to child related issues only.
- 4 e. Proof of actual payment of childcare costs to family members is GRANTED. Pursuant to
5 Family Code section 4062(a), childcare costs are limited to those “actually incurred,” and
6 both parents must provide proof to the other parent of costs actually incurred.
- 7 f. Travel orders are DENIED. Neither party shall travel out of the State of California,
8 without the express permission of the other parent.
- 9 g. Sanctions under Family Code section 271 are DENIED.
- 10 3) All prior orders not in conflict with the orders made herein shall remain in full force and effect.
- 11 4) Counsel for Father shall prepare the Findings and Order After Hearing.
- 12 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
13 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
14 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
15 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
16 proposed order after hearing directly to the court. Failure to submit the order after hearing within
17 10 days may allow the other party to prepare a proposed order and submit it to the court in
18 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

VALERIA PIZZA,

Petitioner

VS.

YUJIRO STEVE HATA,

Respondent

) Case Number: FDI-13-778756

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, SUMMER 2026 VISITATION
DATES

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

- 1) The parties are Petitioner Valeria Pizza (Mother and Respondent Yujiro Steve Hata (Father). They share one minor child: Tullia Hata (DOB: 12/14/12).
- 2) On April 3, 2026, Father filed a Request for Order seeking an order shortening time for hearing on his request for summer 2026 visitation. The Court granted Father's request for an order shortening time for service and hearing. The matter was set for hearing on April 28, 2026 at 9:00 a.m. in Dept. 403. The Court ordered Mother to file and serve her Responsive Declaration no later than April 22, 2026.
- 3) On April 22, 2026, Mother filed a Responsive Declaration.
- 4) **The parties are ordered to appear.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

VAN-CHI WANG,

Petitioner

VS.

LASSANNA KARRIM,

Respondent

) Case Number: FDI-21-794472

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : ENFORCEMENT OF 09-20-2023 JUDGMENT OF DISSOLUTION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Van-Chi Wang and Respondent Lassanna Karrim.
- 2) On 11/3/25, Respondent filed a Request for Order seeking enforcement of the parties 9/20/23 judgment and additional orders. Respondent requests:
 - a. The Court enter the Qualified Domestic Relations Orders (QDROs) prepared by the Moon, Schwartz, and Madden (MSM) once they are updated to reflect the current contact information and status of legal representation. Respondent seeks appointment of the clerk of court as eilsor if either party fails to timely sign the updated QDROs. Respondent also requests reimbursement for costs incurred to effectuate the QDROs.
 - b. Enforcement of the 9/20/23 judgment provision related to disposition of furniture, keepsakes, and personal effects that remain outstanding.
 - c. An order for legal interest of \$312.66 payable to Respondent for net base spousal support Petitioner failed to pay from 3/1/25 – 9/24/25.
 - d. \$3,533.03 in sanctions pursuant to Family Code section 271.

- 1 e. A review hearing in approximately 60 days.
- 2 3) On 11/19/25, the matter was continued from 12/30/25 to 2/10/26 on the Court's own motion.
- 3 4) On 2/5/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for
- 4 Order. Petitioner asserts that the QDROs were already submitted to the Court for approval.
- 5 Petitioner requests the Court continue the 2/17/26 hearing to permit additional time for parties to
- 6 resolve the matter without the Court's assistance.
- 7 5) On 2/6/26, Respondent filed a Reply Declaration confirming the QDROs were submitted to the
- 8 Court for approval, asserting that the remaining issues are still unresolved, and requesting
- 9 \$5,676.08 in Family Code section 271 sanctions. Respondent attached as Exhibit E an updated
- 10 calculation for the legal interest owed on unpaid spousal support and Exhibit F a table detailing
- 11 the costs she incurred for judgment enforcement. Respondent also requests the Court review and
- 12 approve an Earnings Assignment Order pursuant to an attached FL-435.
- 13 6) At the prior 2/17/26 hearing, the Court ordered as follows:
- 14 a. The Court confirms receipt of the proposed QDROS, which are currently pending judicial
- 15 review.
- 16 b. The Court also confirms that per the 9/20/23 judgment terms, the parties shall exchange
- 17 lists of any remaining furniture and keepsakes that need to be divided; any items in
- 18 dispute will be divided by binding arbitration without attorneys.
- 19 c. The Court finds good cause to continue the matter to 4/28/26 at 9:00 AM in Dept. 403 to
- 20 permit the parties additional time to attempt to resolve the remaining issues without the
- 21 Court's assistance.
- 22 d. The parties shall meet and confer in advance of the 4/28/26 hearing date.
- 23 e. At the 4/28/26 hearing date, the Court is inclined to grant Respondent's request for legal
- 24 interest on the net base spousal support Petitioner failed to pay from 3/1/25 – 9/24/25 and
- 25 grant Respondent some amount – though not the full amount – of Family Code section
- 26 271 sanctions.
- 27 f. Both parties shall file update declarations at least 10 days in advance of the 4/28/26
- 28 hearing informing the Court of any outstanding issues.
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1 g. Respondent's request for the Court to review and approve an Earnings Assignment Order
2 pursuant to the attached FL-435 is beyond the scope of the hearing as it was first raised in
3 Respondent's 2/6/26 Reply Declaration.

4 7) On 3/9/26, the parties filed 11 QDROs regarding the division of retirement and pension plans.

5 8) On 4/20/26, Respondent filed an update declaration. Respondent states that the QDROs were
6 approved by the Court on 3/9/26 and mailed to the plan administrators on 4/15/26. Respondent
7 requests a review hearing in 45 days to ensure no further action is required to effectuate the
8 QDROs (i.e., additional forms or information required by the respective IRA custodians to
9 facilitate IRA transfers per the QDROs). Respondent states that the division and disposition of
10 personal property remains outstanding. Respondent asserts that Petitioner owes \$318.43 in
11 interest accrued on unpaid spousal support though confirms that Petitioner paid base spousal
12 support. Respondent attached as Exhibit E an updated calculation for the legal interest owed on
13 unpaid spousal support. Respondent seeks \$7,590.32 in sanctions against Petitioner for costs
14 incurred to effectuate the QDROs and unnecessary delay.

15 9) On 4/20/26, counsel for Petitioner filed an update declaration asserting that all 11 QDROs were
16 dispatched to their respective plans. It is Petitioner's position that Respondent's fee request
17 should be denied as Petitioner incurred thousands of dollars in fees and costs to complete the
18 QDROs since Respondent is self-represented and therefore Petitioner's attorney completed the
19 work. Petitioner states that while the spousal support Petitioner owed Respondent was delayed,
20 Respondent owed Petitioner child support, which was also delayed. Petitioner believes that the
21 disentitlement doctrine should prevent Respondent from relief.

22 **B. Findings and Order**

23 1) Respondent's request for a review hearing is DENIED as the Court finds it is undisputed that all
24 11 QDROs were dispatched to their respective plans. Should any further action be required by
25 either party to effectuate the QDROs (i.e., additional forms or information required by the
26 respective IRA custodians to facilitate IRA transfers per the QDROs), the parties shall take such
27 action within 72 hours of notice.

- 2) The Court reaffirms that per the 9/20/23 judgment terms, the parties shall exchange lists of any remaining furniture and keepsakes that need to be divided; any items in dispute will be divided by binding arbitration without attorneys.
- 3) Respondent's request for legal interest on the net base spousal support Petitioner failed to pay from 3/1/25 – 9/24/25 is DENIED as Petitioner submitted new information to the Court that Respondent failed to timely pay Petitioner child support owed during this period. The Court finds an award of legal interest to Respondent would be inequitable for that reason.
- 4) The Court further finds that both parties incurred additional fees and costs to effectuate the QDROs. As such, all requests for Family Code section 271 sanctions are DENIED.
- 5) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DANIELLE SCHMID-MAYBACH,

Petitioner

VS.

ULRICH SCHMID-MAYBACH,

Respondent

) Case Number: FDI-22-796538

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Appearances required. The parties may appear in person in Dept. 403 or remotely by Zoom video.

If a party chooses to appear by video, that party must abide by the Notice and Instructions for

Remote Appearances in San Francisco Family Court set forth above.

- 1) The parties are Petitioner Danielle Schmid-Maybach (Mother) and Respondent Ulrich Schmid-Maybach (Father).
- 2) Dissolution Judgment was entered on 11/10/25 incorporating a Memorandum of Understanding (MOU) signed by the parties on 2/6/25. See Judgment file dated 11/12/25.
- 3) On for hearing is Mother Order to Show Cause Re: Contempt (file stamped 11/18/25 on the document, but file dated 11/20/25 on the Court's docket) alleging Father violated the terms of the parties' 2/6/25 MOU by failing to transfer title of the 2012 Mercedes to Mother.
- 4) On 1/2/26, Mother filed a Proof of Unsuccessful Service indicating the Sheriff's office made three attempts to serve Mother's Order to Show Cause Re: Contempt on Father, but Father was not found.
- 5) On 1/21/26, Mother filed a Proof of Personal Service indicating her Order to Show Cause Re: Contempt was served on Father by personal service on 12/10/25.
- 6) On 1/30/26, Mother refiled a Proof of Personal Service indicating her Order to Show Cause Re: Contempt was served on Father by personal service on 12/10/25.

1 7) On 2/5/26, both parties appeared at hearing and Father agreed to a date of service of 2/5/26. As such,
2 the matter was continued to 4/28/26.

3 8) **The parties are ordered to appear at hearing on 4/28/26** as the Court intends to arraign Father and
4 set a future trial date.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARIA THERESA POWERS,

Petitioner

VS.

ANDREW DANIEL JINKENS,

Respondent

) Case Number: FDI-22-796662

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: COMMUNITY PROPERTY DIVISION & IMPLEMENTATION OF
COMMUNICATION CENSOR

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Maria Theresa Powers (Mother) and Respondent Andrew Daniel Jenkins (Father). They share two minor children: Maxilliam (DOB: 5/28/14) and Lillian (DOB: 12/16/16).
- 2) On 2/13/26, Mother filed a Request for Order seeking determination of the community property interest in a condominium that Mother asserts is "BMR" (i.e., below market rate). Mother states the parties have been unable to reach an agreement regarding the disposition of the condominium; however, she currently has exclusive use and possession pursuant to an Emergency Protective Order (EPO) from 2023. Mother proposes the condominium be placed in a trust for the minor children.
- 3) On 3/25/26, Mother filed a Proof of Service indicating that the Request for Order was served on Father by personal service on 2/20/26.
- 4) Father did not file a Responsive Declaration.

1 **B. Findings and Order**

- 2 1) The issue raised in Mother's 2/13/26 Request for Order – determination of community property
3 interests in a condominium – is a trial issue; therefore, the Court finds good cause to reserve
4 jurisdiction over Mother's 2/13/26 Request for Order until the time of trial.
- 5 2) To advance in the dissolution process, either party may file an At Issue Memorandum to request a
6 Status Conference at which time a trial date can be requested if it is determined that the parties
7 are ready for trial.
- 8 3) Mother is encouraged to seek assistance from the ACCESS Center. Information for contacting the
9 ACCESS Center can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.
- 10 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JESUS PINEDA-RAMIREZ,

Petitioner

VS.

REBECCA ROSEN,

Respondent

) Case Number: FDV-24-817982

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ENFORCEMENT OF REPAYMENT TERMS FILED ON MARCH 10,
2025

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jesus Pineda-Ramirez and Respondent Rebecca Rosen.
- 2) On 9/9/25, Respondent filed a Request for Order seeking enforcement of a Stipulation and Order
file dated 3/10/25. Respondent requests the Court authorize alternative service of her 9/9/25
Request for Order under Code of Civil Procedure section 413.30 because she does not have
Respondent's current address and there is a Domestic Violence Restraining Order (DVRO) in
place.
- 3) At the prior 11/25/25 hearing, the Court continued the matter to 2/17/26 for lack of service.
- 4) There is still no proof of service on file evidencing Respondent's 9/9/25 Request for Order was
served on Petitioner.
- 5) Petitioner did not file a Responsive Declaration.
- 6) At the prior 2/17/26 hearing, the Court ordered:

- 1 a. The Court finds that Respondent's 9/9/25 Request for Order was not served at least 16
2 Court days prior to the hearing date as required by Code of Civil Procedure section
3 1005(b).
- 4 b. The Court further finds that is has insufficient information to grant alternative service at
5 this time as Respondent did not provide the Court with information regarding diligent
6 efforts made to locate and serve Petitioner. Alternative service is appropriate in
7 circumstances where the opposing party cannot, with reasonable diligence, be served in
8 another authorized manner, and exhaustive attempts to locate and serve the opposing
9 party were demonstrated.
- 10 c. As such, this matter is **continued to 4/28/26 at 9 AM in Dept. 403** for lack of service.
- 11 d. Respondent is encouraged to seek assistance at from the ACCESS Center if she continues
12 to have trouble effectuating proper service. Information for contacting the ACCESS
13 Center can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.
- 14 e. At least 16 Court days prior to the next hearing date, Respondent shall file and serve on
15 Petitioner the (a) 9/9/25 Request for Order, (b) 11/25/25 Continuance Order, (c)
16 Continuance Order contained herein, and (d) Tentative Ruling Instructions using a
17 service method authorized by the Code of Civil Procedure (i.e., a person over the age of
18 18 shall mail to Petitioner the (a) Request for Order, (b) Continuance Orders, and (c)
19 Tentative Ruling Instructions, and then Respondent shall file form FL-335 (Proof of
20 Service) with the Court confirming service was effectuated).
- 21 f. At least 9 Court days prior to the next hearing date, Petitioner may file a Responsive
22 Declaration.
- 23 g. At least 5 Court days prior to the next hearing date, Respondent may file and serve a
24 Reply Declaration.

25 7) Respondent did not file any additional pleadings; there is still no proof of service on file
26 evidencing Respondent's 9/9/25 Request for Order was served on Petitioner.

27 8) Petitioner did not file a Responsive Declaration.

28 **B. Findings and Order**

29

- 1) Given that there is still no proof of service on file evidencing Respondent's 9/9/25 Request for Order was served on Petitioner, The Court finds that Respondent's 9/9/25 Request for Order was not served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
- 2) The Court continues to have insufficient information to grant alternative service at this time as Respondent did not provide the Court with information regarding diligent efforts made to locate and serve Petitioner. Alternative service is appropriate in circumstances where the opposing party cannot, with reasonable diligence, be served in another authorized manner, and exhaustive attempts to locate and serve the opposing party were demonstrated.
- 3) Based on the foregoing, the Court finds good cause to VACATE the 4/28/26 hearing date. Respondent's 9/9/25 Request for Order is therefore DENIED without prejudice (i.e., Respondent may refile).
- 4) Respondent is encouraged to seek assistance at from the ACCESS Center if she chooses to refile and continues to have trouble effectuating proper service. Information for contacting the ACCESS Center can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.
- 5) The Court will prepare the Findings and Order After Hearing.